.5 renewal of refrigeration systems for the preservation of the catch.

3.1.19 Regulation I/5 provides further details on this.
MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE
CAPE TOWN AGREEMENT OF 2012
MSC 109/22/Add.2
Annex 25, page 14

I:\MSC\109\WP\MSC 109-22-Add.2.docx
Summary assistance table for implementation

Regulation to
implement Content

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
Annex 25, page 14

I:\MSC\109\WP\MSC 109-22-Add.2.docx
Summary assistance table for implementation

Regulation to
implement Content
III Code (resolution A.1070(28))
Supportive tools
Function Implementation reference
Regulation I/1 Application
Flag
State
Part 1 Common
areas, paragraph 6.1
Part 2 Flag States,
paragraphs 15.1, 16.1
and 22.1 to .2
National standards developed for
the implementation of SOLAS 1974
may be useful for these items
Regulation I/2 Definitions
Regulation I/3 Exemptions
Regulation I/4 Equivalents
Regulation I/5
Repairs,
alterations and
modifications

3.2 Surveys and certificates (regulations I/6 to 17)

3.2.1 Application: Unless expressly provided otherwise, the provisions of chapter I apply to
new vessels.

Notes:

1. Administrations may entrust the inspections and surveys either to surveyors nominated for the purpose or to organizations recognized by it (regulation I/6(1)).

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
purpose or to organizations recognized by it (regulation I/6(1)).

2. Administrations may exempt vessels from the annual surveys if it considers the application is unreasonable and impracticable and expand the "time window" of the periodical and intermediate surveys (regulation I/1(6), 7(1)(c), 8(1)(c) and 9(1)(c)).

CHAPTER I SURVEYS AND CERTIFICATES SUMMARY

3.2.2 Chapter I also deals with survey and certification requirements. It makes provisions for:

.1 inspections and surveys and the nomination of surveyors or recognized organizations by the Administration (regulation 6);

.2 surveys on the life -saving appliances and other emergency equipment (regulation 7);

.3 survey on the radio installations (regulation 8);

.4 survey on the structure, machinery and other equipment (regulation 9);

.5 maintenance of the condition of the vessel and its equipment after survey (regulation 10); and
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SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
.5 maintenance of the condition of the vessel and its equipment after survey
(regulation 10); and

.6 issuance of certificates, duration, forms of certificates and their acceptance, as well as certification and accompanying privileges (regulations 11 to 17).

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012

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MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012

ANNEX 25
MSC RESOLUTION MSC.571(109)
(adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE
CAPE TOWN AGREEMENT OF 2012
THE MARITIME SAFETY COMMITTEE,
RECALLING article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,
RECALLING ALSO that the International Conference on the Safety of Fishing Vessels, 2012 (the Conference) had adopted the Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (the Agreement),
RECALLING FURTHER that the Conference, when adopting the Agreement, requested the
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SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
RECALLING FURTHER that the Conference, when adopting the Agreement, requested the Organization to intensify its efforts to provide Parties and Member States with the assistance they might need in implementing the Agreement,
RECOGNIZING that the entry into force and implementation of the Agreement will make a significant contribution to the safety of fishing vessels,
RECOGNIZING ALSO the need to provide guidance for a unified implementation to those States that have already become Parties to the Agreement or are in the process thereof,
RECALLING resolution A.1186(33) on the Survey guidelines under the harmonized system of survey and certification (HSSC), 2023, which provides guidance for conducting surveys required by relevant IMO instruments,
HAVING CONSIDERED, at its 109th session, the recommendation made by the Sub - Committee on Implementation of IMO Instruments, at its tenth session,
1 ADOPTS the Interim guidance to assist in the implementation of the Cape Town
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SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
1 ADOPTS the Interim guidance to assist in the implementation of the Cape Town Agreement of 2012 (the Interim Guidance), set out in the annex to the present resolution;
2 INVITES Parties and Member States concerned to:
.1 follow the Interim Guidance on how to comply with the requirements set forth in the Agreement for a harmonized implementation;
.2 consider its provisions when developing national legislation governing fishing vessel safety;
.3 consider establishing appropriate measures in order to ensure that compliance of existing fishing vessels with the relevant requirements of the Agreement is documented, as appropriate; and
.4 consider paying particular attention to the case where a flag State has a pre-existing safety standard which is higher than the Agreement and, in such circumstances, the higher national standards should be retained for that State.

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
circumstances, the higher national standards should be retained for that State.

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